

CHAPTER 14*Nurses (Amendment) Act, 1961*

ARRANGEMENT OF SECTIONS

Section

1. Roll of assistant nurses to be known as roll of nurses.
2. Standards of training for admission to register and roll.
3. Registration of nurses trained abroad.
4. Increase in members of General Nursing Council for England and Wales.
5. Failure to attend meetings of Councils for England and Wales or Scotland, or their committees.
6. Continuance in office of appointed members of Councils, etc., notwithstanding loss of certain qualifications.
7. Failure to elect members of Councils or their committees.
8. Expenses of members of committees of General Nursing Council for England and Wales.
9. Attendance of witnesses, and administration of oaths, in disciplinary, etc., proceedings.
10. Assessors in disciplinary, etc., proceedings.
11. Surrender of certificates and badges on removal from register, roll or list.
12. Interpretation.
13. Extension of powers of Parliament of Northern Ireland.
14. Consequential and minor amendments, and repeals.
15. Short title, citation, commencement and extent.

SCHEDULES:

First Schedule—Consequential and minor amendments.

Second Schedule—Enactments repealed.

An Act to amend the law relating to nurses for the sick.
[28th March, 1961]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Roll of
assistant nurses
to be known as
roll of nurses.

1.—(1) The roll of assistant nurses maintained for England and Wales under paragraph (b) of subsection (1) of section two of the Act of 1957, and that maintained for Scotland under subsection (1) of section three of the Act of 1951, shall each be known as the roll of nurses; and the Assistant Nurses Committee under each of the said Acts shall be known as the Enrolled Nurses Committee.

(2) Any reference in rules made by the General Nursing Council for England and Wales or the General Nursing Council for Scotland, or in any certificate issued in pursuance of any such rules, to the roll of assistant nurses, the Assistant Nurses Committee, or an enrolled assistant nurse or assistant nurse, shall be construed as a reference to the roll of nurses, the Enrolled Nurses Committee, or an enrolled nurse, as the case may be.

Standards of
training for
admission to
register and
roll.

2. The training required by rules made under section three of the Act of 1957, or section six of the Act of 1951, as a condition of admission to the register shall be of a more advanced standard than that required by the rules as a condition of admission to the roll.

3. Subsection (2) of section four of the Act of 1957 and subsection (2) of section seven of the Act of 1951 (under which the General Nursing Council for England and Wales and the General Nursing Council for Scotland respectively, if of opinion that a person whose training abroad does not qualify him for registration could properly be registered after undergoing such further training in the United Kingdom as they may specify, may register that person on his undergoing the specified training in the United Kingdom to their satisfaction) shall each have effect with the omission of the words "in the United Kingdom" in both places where they occur.

Registration
of nurses
trained
abroad.

4.—(1) In sub-paragraph (a) of paragraph 1 of the First Schedule to the Act of 1957 (which provides that the number of elected members of the General Nursing Council for England and Wales shall be seventeen) for the word "seventeen" there shall be substituted the word "eighteen"; and in paragraphs 2 and 4 of that Schedule (which, amongst other things, require fourteen of the said elected members to be nurses registered in the general part of the register, and provide for the division of England and Wales into fourteen areas and for one such nurse to be elected for each such area) for the word "fourteen", in each place where that word occurs, there shall be substituted the word "fifteen".

Increase in
members of
General
Nursing
Council for
England and
Wales.

(2) In sub-paragraph (b) of paragraph 1 of the said First Schedule (which provides that twelve persons shall be appointed to membership of the Council by the Minister of Health) for the word "twelve" there shall be substituted the word "thirteen".

(3) The foregoing provisions of this section shall come into force at the beginning of the year nineteen hundred and sixty-two, and—

(a) from then until the expiration on the twenty-first day of September, nineteen hundred and sixty-five, of the terms of office of the elected members of the Council holding office at the commencement of this Act, the additional place on the Council under subsection (1) of this section shall be filled by a person appointed thereto by the Council, being a nurse registered in the general part of the register who, on the date of the appointment, is engaged in such area as the Minister of Health may determine in nursing or in other work for which the employment of a registered nurse is requisite or for which a registered nurse is commonly employed;

(b) the term of office of the additional member first appointed to the Council by virtue of subsection (2) of this section shall expire on the twenty-first day of September, nineteen hundred and sixty-three, being the date of

expiration of the terms of office of the appointed members of the Council holding office at the commencement of this Act.

Failure to attend meetings of Councils for England and Wales or Scotland, or their committees.

5.—(1) If a member of the General Nursing Council for England and Wales or the General Nursing Council for Scotland fails throughout a period of six consecutive months beginning on or after the date of the commencement of this Act to attend any meeting of the Council, then, unless they are satisfied that the failure was due to illness or other reasonable cause, the Council shall forthwith declare his place thereon to be vacant, and his membership of the Council, and of any committee of the Council, shall thereupon cease.

(2) For the purposes of the foregoing subsection, the attendance of a member of a Council at a meeting of any committee thereof of which he is also a member shall be deemed to be attendance at a meeting of the Council.

(3) Subject to the following subsection, if a member of any committee of the General Nursing Council for England and Wales or the General Nursing Council for Scotland fails throughout a period of six consecutive months beginning on or after the date of the commencement of this Act to attend any meeting of that committee, then, unless they are satisfied that the failure was due to illness or other reasonable cause, the committee (or, in the case of a committee constituted by either of the said Councils in pursuance of rules made by them under paragraph 11 of the First Schedule to the Act of 1957 or, as the case may be, paragraph 9 of the First Schedule to the Act of 1951, the Council by whom the committee was constituted) shall forthwith declare his place on the committee to be vacant, and his membership of the committee shall thereupon cease.

(4) The last foregoing subsection does not apply in relation to the place on the Mental Nurses Committee of either of the said Councils of any person who, by virtue of his membership of the Council in question, is required to be appointed to the said committee.

Continuance in office of appointed members of Councils, etc., notwithstanding loss of certain qualifications.

6. Where a person appointed by the Minister of Health or, as the case may be, the Secretary of State to a place on the General Nursing Council for England and Wales or the General Nursing Council for Scotland, or to a place on the Mental Nurses Committee of either of those Councils, ceases during his term of office to possess any qualification which he was required to possess as a condition of his appointment to that place but which consisted only of the holding by him of any employment or position, or of his being engaged in the teaching of any subject, his said place shall not become vacant by reason only of that fact unless, after consulting with the appropriate Council, the Minister or, as the case may be, the Secretary of State so determines.

7.—(1) Where a place on any body is required by the Act of 1957 or the Act of 1951 to be filled on any date by a person elected thereto, and, at the election of members of the body to take office on the date in question, no person is elected to that place, the place shall be filled instead by a person appointed thereto in accordance with the provisions of this section, being a person who would have been qualified for election thereto at the said election; and the person appointed shall, for the purposes of the Act of 1957 or, as the case may be, the Act of 1951, be deemed to have been so elected.

(2) An appointment to any place under the foregoing subsection shall be made as soon as may be after the date mentioned in that subsection, and—

- (a) in the case of a place on the General Nursing Council for England and Wales, the General Nursing Council for Scotland, or the Mental Nurses Committee of either of those Councils, shall be made by the Council in question;
- (b) in the case of a place on the Enrolled Nurses Committee of the General Nursing Council for England and Wales, shall be made by the Minister of Health;
- (c) in the case of a place on the Enrolled Nurses Committee of the General Nursing Council for Scotland, shall be made by the Secretary of State.

8. Sub-paragraph (a) of paragraph 13 of the First Schedule to the Act of 1957 (which authorises the General Nursing Council for England and Wales to make payments to members of the Council who have suffered loss of earnings or incurred additional expenses in performing duties as members of the Council) shall be amended as follows, that is to say—

- (a) after the words “may pay to the members thereof” there shall be inserted the words “and to the members of any committee thereof”, and
- (b) at the end thereof there shall be added the words “or committee, as the case may be”;

and accordingly, paragraph 10 of the Third Schedule to the said Act and paragraph 10 of the Fourth Schedule thereto (which authorise the making of like payments to members of the Mental Nurses Committee and the Enrolled Nurses Committee of the Council respectively) shall cease to have effect.

9.—(1) For the purposes of any proceedings before the General Nursing Council for England and Wales, or any committee of that Council, relating to the removal of a person from, or his restoration to, the register, the roll or the list—

- (a) the body before whom the proceedings are held may administer oaths, and

Failure to elect members of Councils or their committees.

Expenses of members of committees of General Nursing Council for England and Wales.

Attendance of witnesses, and administration of oaths, in disciplinary, etc., proceedings.

- (b) any solicitor to the Council, and any person entitled to appear at the proceedings, may sue out writs of subpoena ad testificandum and duces tecum;

but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

(2) Section forty-nine of the Supreme Court of Judicature (Consolidation) Act, 1925 (which provides a special procedure for the issue of such writs so as to be in force throughout the United Kingdom), shall apply in relation to any such proceedings as aforesaid as it applies in relation to causes or matters in the High Court.

(3) For the purposes of any proceedings before the General Nursing Council for Scotland, or any committee of that Council, relating to the removal of a person from, or his restoration to, the register or roll—

- (a) the body before whom the proceedings are held may administer oaths, and

- (b) the Court of Session shall, on the application of any party to the proceedings, have the like power as in any action in that Court,

(i) to grant warrant for the citation of witnesses and havers to give evidence or to produce documents before the body before whom the proceedings are held, and for the issue of letters of second diligence against any witness or haver failing to appear after due citation,

(ii) to grant warrant for the recovery of documents, and

(iii) to grant commissions to persons to take the evidence of witnesses or to examine havers and to receive their exhibits and productions.

Assessors in
disciplinary,
etc., pro-
ceedings.

10.—(1) In all proceedings before the General Nursing Council for England and Wales or, as the case may be, the General Nursing Council for Scotland, or any committee of either of those Councils, relating to the removal of a person from the register or the roll for disciplinary reasons, there shall, for the purpose of advising the body before whom the proceedings are held on questions of law arising in the proceedings, be an assessor to that body; and any such body may, if they think fit, determine that an assessor under this section shall, for the purpose of advising them as aforesaid, be present at any other proceedings before them relating to the removal of a person from the register or the roll, or at any proceedings before them relating to the restoration of a person to the register or the roll.

In England and Wales, the provisions of this subsection shall apply in relation to proceedings for the removal of a person

from, or his restoration to, the list as they apply in relation to proceedings for the removal of a person from the register or, as the case may be, his restoration thereto.

(2) An assessor under this section shall be a barrister, advocate or solicitor of not less than ten years' standing.

(3) The power of appointing assessors under this section shall be exercisable by the General Nursing Council for England and Wales or, as the case may be, the General Nursing Council for Scotland; but if, at any particular proceedings before a committee of either of those Councils, no assessor appointed by the Council in question is available to act, the committee may appoint an assessor under this section to act at those proceedings.

(4) The Lord Chancellor for the purposes of proceedings in England and Wales, and the Lord President of the Court of Session for the purposes of proceedings in Scotland, may, by statutory instrument, make rules as to the functions of assessors appointed under this section; and, in particular, rules under this section may contain such provisions for securing—

(a) that where an assessor advises a body before whom proceedings are held on any question of law as to evidence, procedure or any other matters specified by the rules, he shall do so in the presence of every party, or person representing a party, to the proceedings who appears thereat or, if the advice is tendered while the body are deliberating in private, that every such party or person as aforesaid shall be informed of the advice the assessor has tendered,

(b) that every such party or person as aforesaid shall be informed if in any case the body do not accept the advice of the assessor on such a question as aforesaid, and such incidental and supplementary provisions, as appear to the Lord Chancellor or, as the case may be, the Lord President of the Court of Session expedient.

(5) Subject to the provisions of this section, an assessor under this section may be appointed either generally or for any particular proceedings or class of proceedings, and shall hold and vacate office in accordance with the terms of the instrument under which he is appointed.

(6) The General Nursing Council for England and Wales or, as the case may be, the General Nursing Council for Scotland may pay to an assessor appointed under this section remuneration at such rates as they may, with the consent of the Lord Chancellor or, as the case may be, the Lord President of the Court of Session, determine.

(7) The Statutory Instruments Act, 1946, shall apply to a statutory instrument containing rules made by the Lord President of the Court of Session under subsection (4) of this section in like manner as if he were a Minister of the Crown.

Surrender of
certificates and
badges on
removal from
register, roll
or list.

11.—(1) A person whose name is removed from the register or the roll for disciplinary reasons shall, within a period of fourteen days beginning with the date on which written notice that his name has been so removed is received by him, deliver to the registrar of the General Nursing Council for England and Wales or, as the case may be, the General Nursing Council for Scotland, any certificate or badge which has been issued to him as a person registered or enrolled and which he has not delivered as aforesaid before that date.

(2) Any person who fails to comply with the requirements of the foregoing subsection shall be guilty of an offence and liable on summary conviction to a fine not exceeding five pounds.

(3) In England and Wales, the foregoing provisions of this section shall apply in relation to a person whose name is removed from the list for disciplinary reasons, and to any certificate issued to him as a person included in the list, as they apply in relation to a person whose name is removed from the register for disciplinary reasons, and to any certificate of registration issued to such a person.

Interpretation.

12.—(1) In this Act—

“ the Act of 1957 ” means the Nurses Act, 1957, and

“ the Act of 1951 ” means the Nurses (Scotland) Act, 1951.

(2) References in this Act to the removal of a person from the register, the roll or (in England and Wales) the list for disciplinary reasons are references to his removal therefrom on grounds which involve the commission by him of a criminal offence, or any misconduct on his part not constituting such an offence, or on the ground that the entry of his name thereon was procured by fraud.

(3) Any expression used in this Act and in the Act of 1957 shall, in the application of this Act to England and Wales, have the same meaning in this Act as in the Act of 1957; and any expression used in this Act and in the Act of 1951 shall, in the application of this Act to Scotland, have the same meaning in this Act as in the Act of 1951.

(4) References in this Act to any enactment shall be construed as references to that enactment as amended by any subsequent enactment, including, except where the context otherwise requires, this Act.

Extension of
powers of
Parliament of
Northern
Ireland.

13. Notwithstanding any limitation on the powers of the Parliament of Northern Ireland, that Parliament may in relation to any proceedings for the removal of a person from, or his restoration to, any register, roll or list maintained in relation to nurses pursuant to the Nurses and Midwives Act (Northern Ireland), 1959 (or any enactment amending or re-enacting that Act, with or without modifications), pass legislation for purposes corresponding to the purposes of section nine of this Act.

14.—(1) The Acts mentioned in the First Schedule to this Act shall have effect subject to the amendments there mentioned, which consist of—

Consequential
and minor
amendments,
and repeals.

(a) amendments consequential on section one of this Act, and

(b) amendments affecting the relevant date for the possession of certain qualifications for being elected and for voting at elections under the Act of 1957 and the Act of 1951.

(2) The Acts mentioned in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

15.—(1) This Act may be cited as the Nurses (Amendment) Act, 1961, and—

Short title,
citation, com-
mencement
and extent.

(a) this Act and the Act of 1957 may be cited together as the Nurses Acts, 1957 and 1961;

(b) this Act and the Act of 1951 may be cited together as the Nurses (Scotland) Acts, 1951 and 1961.

(2) This Act shall come into force on the expiration of a period of three months beginning with the day on which it is passed.

(3) This Act (except subsections (2) and (3) of section nine, and section thirteen) does not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 14.

CONSEQUENTIAL AND MINOR AMENDMENTS

PART I

AMENDMENTS CONSEQUENTIAL ON SECTION 1

The Nurses (Scotland) Act, 1951 (14 & 15 Geo. 6. c. 55)

1. In section four, for the words "Assistant Nurses Committee", in each place where those words occur, there shall be substituted the words "Enrolled Nurses Committee"; and, in subsection (2), for the word "assistant" there shall be substituted the word "enrolled".

2. In subsection (3) of section six, after the word "registered" there shall be inserted the words "or enrolled", and the words "or enrolled as assistant nurses" shall be omitted.

3. In section ten, for the words "Assistant Nurses Committee" there shall be substituted the words "Enrolled Nurses Committee".

4. In section fifteen, for the words "Assistant Nurses Committee" there shall be substituted the words "Enrolled Nurses Committee".

1ST SCH.

5. In the Second Schedule,—

- (a) for the words “Assistant Nurses Committee”, in each place where those words occur, there shall be substituted the words “Enrolled Nurses Committee”; and
- (b) for the word “assistant”, in the second place where that word occurs in head (b) of sub-paragraph (1) of paragraph 1 and where it occurs in head (c) of that sub-paragraph and in sub-paragraph (1) of paragraph 4, there shall be substituted the word “enrolled”.

The Nurses Act, 1957
(5 & 6 Eliz. 2. c. 15)

6. In paragraph (b) of subsection (1) of section two, after the word “them” there shall be inserted the words “and by the name of the roll of nurses”.

7. In paragraph (a) of subsection (2) of section three, after the word “registered” there shall be inserted the words “or enrolled”, and the words “or enrolled as assistant nurses there” shall be omitted.

8. In paragraph (b) of subsection (5) of section seven, for the words “Assistant Nurses Committee” there shall be substituted the words “Enrolled Nurses Committee”.

9. In section nineteen—

- (a) in subsection (1), for the words “by that name” there shall be substituted the words “by the name of the Enrolled Nurses Committee”; and
- (b) in subsections (2) and (3), for the words “Assistant Nurses Committee”, in each place where those words occur, there shall be substituted the words “Enrolled Nurses Committee”; and
- (c) in subsection (3), for the word “assistant” there shall be substituted the word “enrolled”.

10. In subsection (1) of section thirty-three, for the definition of “the roll” there shall be substituted the following definition:—

“‘the roll’ means the roll of nurses maintained in pursuance of subsection (1) of section two of this Act, and ‘enrolled’ shall be construed accordingly;”

11. In the Fourth Schedule—

- (a) for the words “Assistant Nurses Committee”, in each place where those words occur, there shall be substituted the words “Enrolled Nurses Committee”; and
- (b) for the word “assistant” where that word first occurs in sub-paragraph (b) of paragraph 1 and where it occurs in sub-paragraph (1) of paragraph 4 there shall be substituted the word “enrolled”.

The Nurses Agencies Act, 1957

1ST SCH.

(5 & 6 Eliz. 2. c. 16)

12. In section eight, for the definition of "enrolled assistant nurse" there shall be substituted the following definition:—

" 'enrolled nurse' means a person enrolled in the roll of nurses maintained in pursuance of subsection (1) of section two of the Nurses Act, 1957 ".

PART II

AMENDMENTS AS TO QUALIFYING DATES AT ELECTIONS

The Nurses (Scotland) Act, 1951

(14 & 15 Geo. 6. c. 55)

13. In sub-paragraph (2) of paragraph 2 of the First Schedule, for the words "on the date of the election" there shall be substituted the words "on the date fixed for the purposes of the election as the last date for the receipt of nomination papers"; and in sub-paragraph (2) of paragraph 6 of that Schedule, for the words "if an election were to take place on the date on which he is appointed" there shall be substituted the words "if an election were to be held therefor and the date fixed for the purposes of the election as the last date for the receipt of nomination papers were the date on which he is appointed".

14. The words "on the prescribed date" shall be substituted for the words "on the date of the election" in head (b) of sub-paragraph (1) of paragraph 1 of the Second Schedule and in heads (b) and (c) of sub-paragraph (1) of paragraph 1 of the Third Schedule.

The Nurses Act, 1957

(5 & 6 Eliz. 2. c. 15)

15. In sub-paragraph (2) of paragraph 2 of the First Schedule, for the words "on the date of the election" there shall be substituted the words "on the date fixed for the purposes of the election as the last date for the receipt of nomination papers"; and in sub-paragraph (2) of paragraph 6 of that Schedule, for the words "if an election were to take place on the date on which he is appointed" there shall be substituted the words "if an election were to be held for that area and the date fixed for the purposes of the election as the last date for the receipt of nomination papers were the date on which he is appointed".

16. The words "on the prescribed date" shall be substituted for the words "on the date of the election" in heads (a), (b) and (c) of sub-paragraph (1) of paragraph 2 of the First Schedule, in head (b) of sub-paragraph (1) of paragraph 1 of the Third Schedule and in head (i) of sub-paragraph (b) of paragraph 1 of the Fourth Schedule.

Section 14.

SECOND SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
14 & 15 Geo. 6. c. 55.	The Nurses (Scotland) Act, 1951.	In section three, in subsection (1), the word "assistant". In section six, in paragraph (c) of subsection (2), the word "assistant"; and, in subsection (3), the words "or enrolled as assistant nurses". In section seven, in subsection (2), the words "in the United Kingdom" in both places where those words occur. In section twelve, in subsection (2), the word "assistant". In section twenty-seven, in paragraph (b) of subsection (1), the word "assistant". In section thirty-four, in the definition of "the roll", the word "assistant". In section thirty-five, in subsection (5), the word "assistant" in the second place where that word occurs. In the Second Schedule, in head (b) of sub-paragraph (1) of paragraph 1, the word "assistant" in the first and the third place in which that word occurs.
5 & 6 Eliz. 2. c. 15.	The Nurses Act, 1957	In section three, in paragraph (a) of subsection (2), the words "or enrolled as assistant nurses there". In section four, in subsection (2), the words "in the United Kingdom" in both places where those words occur. In section twenty-eight, in subsection (1), the word "assistant". In the Third Schedule, paragraph 10. In the Fourth Schedule, in head (i) of sub-paragraph (b) of paragraph 1, the word "assistant"; and paragraph 10.
5 & 6 Eliz. 2. c. 16.	The Nurses Agencies Act, 1957.	In section one, in paragraph (b) of subsection (1), the word "assistant".

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Nurses (Scotland) Act, 1951	14 & 15 Geo. 6. c. 55.
Nurses Act, 1957	5 & 6 Eliz. 2. c. 15.
Nurses Agencies Act, 1957	5 & 6 Eliz. 2. c. 16.

CHAPTER 15

Post Office Act, 1961

ARRANGEMENT OF SECTIONS

New financial Arrangements

Section

1. Establishment of new Post Office Fund.
2. Contributions by Postmaster General in lieu of taxes, &c.
3. Provisions as to broadcasting revenue and expenditure.
4. Surrender of sums received by Postmaster General in lieu of fines.
5. Annual resolution of House of Commons for payments out of the Fund.
6. General duty of Postmaster General as to finance.
7. General reserve.
8. Power of Postmaster General to borrow temporarily.
9. Exchequer advances.
10. Limitation of indebtedness.
11. Investment powers.
12. Accounts and reports.

Provisions consequential on, or supplementary to, the foregoing Sections

13. Initial assets and liabilities of the Fund, and adjustment of accounts in consequence of its establishment.
14. Winding up of existing system of raising money for Post Office purposes.
15. Preservation of pension rights.
16. Parliamentary control of regulations under Post Office Act, 1953, and abolition of Treasury control of Post Office business.
17. Parliamentary control of regulations under Juries Act, 1862, and Telegraph Act, 1885.
18. Repeal of provisions limiting charges.
19. Payment of Postmaster General for work done on behalf of other government departments.
20. Abolition of existing Post Office Fund.